



How many counties across the United States use the compas tool

The COMPAS tool is used in 11 counties across the United States, impacting a population of about 4.3 million people. This number comes from research mapping the use of various pretrial risk assessment tools across the country, which identified COMPAS as being used specifically in 11 counties.^[1]

These counties include some in states like New York, Wisconsin, California, and Florida, but overall the tool's adoption at the county level is relatively limited compared to other risk assessment tools.



How often do judges cite COMPAS as the reason for detaining a defendant?

There does not appear to be a specific, widely published statistic quantifying exactly how often judges explicitly cite COMPAS as the sole or primary reason for detaining a defendant. However, COMPAS scores are one of multiple factors that judges consider in pretrial decisions. The COMPAS tool provides risk scores for recidivism, violence, and failure to appear, labeled as low, medium, or high risk, which contribute to the decision-making process about detention or release.^{[11] [12]}

Judges often use COMPAS risk scores as part of a broader evaluation, but court opinions and legal commentary indicate that COMPAS alone is rarely given exclusive weight. For example, in the Wisconsin State v. Loomis case, the court acknowledged COMPAS is used but must be accompanied by explanations of other factors and disclaimers about the tool's limitations.^[13]

Thus, while COMPAS scores inform detention decisions, the available evidence suggests judicial citations usually integrate these scores as part of a fuller set of considerations rather than as a standalone justification for detention.^{[11] [13]}



Is there research on how much weight judges give in their decision to hold defendants?

Research shows that judges' decisions to hold defendants pretrial do incorporate risk assessments, but the weight given to those assessments varies and is often integrated with other case factors. Studies find that structured decision-making tools and risk assessment algorithms can guide detention decisions to maximize public safety and court appearance rates while minimizing unnecessary detention. However, judges often override risk tool recommendations due to case-specific considerations or skepticism, leading to mixed implementation effectiveness.

Several recent studies highlight:

- If judges strictly followed risk assessment recommendations, pretrial detention rates and recidivism could be reduced. Yet, in practice, judges override these recommendations frequently.
- Decision aids usually integrate defendant risk of failure to appear or reoffending with the severity of charges to recommend release conditions or detention.
- Some research shows judicial discretion and other factors like charge severity influence detention decisions beyond just risk scores.
- Risk assessments are intended to promote transparency, consistency, and fairness, but gaps remain in adherence and application across jurisdictions.

Overall, while risk tools like COMPAS inform judicial decisions, the amount of weight judges give those tools varies widely, often supplemented or overridden by other judicial considerations.^[19]
^[20] ^[21] ^[22] ^[23]



Provide examples of research papers that have explored judicial reliance on COMPAS and how much judges weigh COMPAS recommendations¹

Here are examples of research papers that have explored judicial reliance on COMPAS and how much judges weigh COMPAS recommendations:

1. "Algorithms in Judges' Hands: Incarceration and Inequity in Broward County, Florida" (2023) studies over ten thousand court records before and after COMPAS implementation. It finds that judges use COMPAS scores to reduce incarceration rates both for low- and high-risk individuals, impacting confinement decisions, though racial bias in scores affects disparities.^[27]
2. An analysis in the UCLA Law Review article "Injustice Ex Machina: Predictive Algorithms in Criminal Sentencing" (2019) discusses the assumptions courts make about judges' use of COMPAS, highlighting risks of automation bias. It argues that judges often over-rely on

COMPAS risk scores, which can influence sentencing beyond what is formally acknowledged. [28]

3. "State v. Loomis" in Harvard Law Review (2017) reviews a legal case debating COMPAS use and judicial discretion. The court held that judges do not overly rely on COMPAS and maintain individualized sentencing discretion, but academic critiques suggest judges may give undue weight to these algorithmic scores. [29]
4. A study from the Colorado Technology Law Journal titled "Lessons from the COMPAS-ProPublica Debate" (2019) explores legal and practical challenges in contesting COMPAS scores in court, noting the court's reliance on data accuracy but overlooking algorithmic complexities impacting judicial weight placed on COMPAS. [30]

These papers collectively highlight that while judges do rely on COMPAS recommendations in pretrial and sentencing decisions, the extent and nature of this reliance varies and could be influenced by judicial assumptions, cognitive biases, and institutional pressures. [27] [29] [28] [30]

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